

[doc. web n. 10105656]
Provision of November 14, 2024
Register of provisions
n. 708 of November 14, 2024

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting held today, attended by
Prof. Pasquale Stanzione, President, Prof.
Ginevra Cerrina Feroni, Vice President, Dr.
Agostino Ghiglia and Attorney Guido Scorza, members, and
Secretary General Fabio Mattei;

HAVING REGARD to Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016 (hereinafter, "Regulation");

HAVING REGARD to the Code regarding the protection of personal data, containing provisions for the adaptation of the national legal system to Regulation (EU) 2016/679 (Legislative Decree of June 30, 2003, n. 196, as amended by Legislative Decree of August 10, 2018, n. 101, hereinafter "Code");

HAVING REGARD to the complaint submitted pursuant to Article 77 of the Regulation by Ms. XX, who reported a violation of the rules on the protection of personal data by Medoc s.r.l.;

HAVING EXAMINED the documentation on file;

HAVING REGARD to the observations made by the Secretary General pursuant to Article 15 of the Guarantor's Regulation n. 1/2000;

REPORTING Attorney Guido Scorza;

PREMISED

1. The investigation initiated following the submission of the complaint.

With a complaint submitted on 09/11/2021, pursuant to Article 77 of the Regulation, Ms. XX, through her lawyer Attorney XX, complained of unlawful processing of personal data by Medoc s.r.l., a company tasked by her employer to carry out health surveillance as per Legislative Decree 81/2008.

In particular, the complainant stated that she underwent a periodic examination pursuant to Article 41 of Legislative Decree 81/2008 at the medical office of Medoc s.r.l. (hereinafter "the Company"), which issued a judgment of "temporary unfitness until the completion of the COVID vaccination plan and until the effectiveness of the vaccination, that is, at least 14 days after the second dose" (certificate dated 25/08/2021, submitted in the records). This certificate was transmitted in its entirety to the employer, who thus became aware of her vaccination status.

The Office made a request for information to the Company, pursuant to Article 157 of the Code, aimed at understanding the legal basis for the processing carried out (note dated 20/01/2022 reiterated on 21/03/2022). The Company responded with a note dated 14/04/2022, stating that:

- "the data reported in the contested fitness judgment should not be considered personal, as they pertain to the fulfillment of the legal obligation of vaccination against Sars cov2 for healthcare personnel, pursuant to Law n. 44/2021," also considering the complainant's role as a healthcare operator in a nursing home;
- "This communication was lawful because it is a regulatory obligation imposed for the protection of the corporate community and users; as mentioned above, the execution of the vaccine was and is an indispensable prerequisite for carrying out her work activity in the healthcare field, to protect colleagues and users, many of whom are vulnerable. It is true that the relevant ASL communicated both to the healthcare operator (the directly concerned party) and to the employer the employee's lack of vaccination for the purposes of the obligations to be fulfilled";
- "The competent doctor, as a professional, must adopt a prudent conduct that protects health by taking additional measures to ensure health as a good protected by the constitution; consequently, he was obliged to provide the employer with the necessary information regarding the vaccination

obligation."

The Company, with a subsequent communication dated 18/07/2022, transmitted the documentation regarding the information provided, prepared pursuant to Article 13 of the Regulation, and the Register of processing activities referred to in Article 30 of the same Regulation.

2. The initiation of the procedure for the adoption of corrective and sanctioning measures pursuant to Article 58, paragraph 1, letter d), of the Regulation and Article 166, paragraph 5, of the Code. Based on the evidentiary elements acquired also through the request for information made to the complainant's employer, the Office proceeded to notify the Company, pursuant to Article 166, paragraph 5, of the Code, of the act initiating the procedure for the adoption of corrective and sanctioning measures for the violation of Articles 6 and 9, paragraph 2, letter b), of the Regulation (note dated 14/12/2023).

In the defense writings sent on 13/03/2023, the Company stated that:

- "one cannot ignore the fact that the pandemic phase was, for its entire duration, regulated in urgency by legislative and ministerial decrees that were not fully compliant with internal provisions and European regulations, even in the field of privacy. Therefore, it does not seem reasonable to evaluate according to ordinary and general rules the conduct held during a period characterized by exceptional/special directives that derogate from general principles";

- "it is easy to exclude any responsibility, as well as any element of intent or negligence on the part of Medoc s.r.l., which reasonably believed it had to justify its judgment of unfitness. In reality, it merely reiterated information that the employer had the right to know, in

as called upon by one side to verify the validity of the green pass, and on the other side to apply or not the suspension from service. Conversely, by omitting the reasoning behind the judgment of unfitness, Medoc srl would not have allowed the employer to fully observe the aforementioned obligations of control over the green certification and suspension from duties, exposing them to sanctions,

- ***"In this case, the mitigating circumstance indicated by Article 9 of the GDPR is recognized, as Medoc srl, in collaboration with the employer of Ms. ..., undertook actions following the certificate, imposed by Legislative Decree 81/2008, functional to the contractual (from the social contract) and legal protection of the health and safety of the worker herself, colleagues, even vulnerable guests, and third parties, with an individual and collective interest of a higher rank to be protected, for which the occupational physician, together with the employer, is the legally appointed guarantor."***

3. **The outcome of the investigation and the procedure for the adoption of corrective and sanctioning measures.**

Following the examination of the statements made to the Authority during the procedure as well as the documentation acquired, it appears that the Company, as the data controller, has carried out a processing of so-called special data related to the complainant that is not compliant with the regulations on personal data protection.

It is highlighted that, unless the act constitutes a more serious offense, anyone who, in a proceeding before the Guarantor, falsely declares or certifies news or circumstances or produces false acts or documents is liable under Article 168 of the Code "Falsehood in declarations to the Guarantor and interruption of the execution of the tasks or the exercise of the powers of the Guarantor."

In particular, it has emerged that the Company, tasked with carrying out health surveillance activities pursuant to Article 41 of Legislative Decree 81/2008, in its capacity as the competent physician, transmitted the judgment of temporary unfitness of the complainant to her employer, indicating the reasons for the unfitness.

The processing operation carried out concerned data pertaining to the so-called special category, with respect to which Article 9 of the Regulation provides for a prohibition of processing, unless in the cases explicitly provided for in paragraph 2 of the same norm. Among these, the processing carried out "for the purposes of preventive medicine or occupational medicine, assessment of the employee's work capacity" (Article 9, paragraph 2, letter h) of the Regulation) falls within the scope of the function performed by the competent physician as provided by national legislation.

Such processing must be carried out "under the responsibility of a professional subject to professional

secrecy in accordance with the law of the Union or the Member States (...)” (Article 9, paragraph 3 of the Regulation).

Furthermore, it must be reiterated that the competent physician holds the qualification of an independent data controller regarding the processing carried out in relation to the assessment of the worker's fitness for the job (Articles 4, no. 7 and 24 of the Regulation). As this is the only subject authorized to process the health data of workers for the purposes indicated by the sector law, any flows of personal data between the employer and the competent physician must be understood as “communications” of personal data, the prerequisites of which can be found in the sector regulatory framework.

Even in the context of the epidemiological emergency from the Sars-CoV-2 virus, the Authority has emphasized the guaranteeing role of the competent physician in the processing of workers' data, reiterating that “the competent physician, in the context of their health surveillance activities, is the only subject authorized to process the health data of workers and to verify the fitness for the ‘specific job’ (Articles 25, 39, paragraph 5, and 41, paragraph 4, Legislative Decree No. 81/2008)” (see FAQs regarding “Data processing in the public and private work context during the health emergency,” in web doc no. 9337010, especially FAQs no. 4, 7, and 8, and FAQs on “Processing of data related to the Covid-19 vaccination in the work context,” web doc no. 9543615; regarding the role of the competent physician, see also the document “The role of the competent physician in workplace safety, also with reference to the emergency context”).

In this context, “only the competent physician, in their role as a link between the national/local health system and the specific work context and in compliance with the indications provided by health authorities regarding the effectiveness and medical-scientific reliability of the vaccine, can process personal data related to the vaccination of employees and, if necessary, take it into account in the assessment of fitness for the specific job. The employer must instead limit themselves to implementing the measures indicated by the competent physician in cases of partial or temporary unfitness for the job to which the worker is assigned” (Articles 279, 41, and 42 of Legislative Decree No. 81/2008 (“The role of the competent physician in workplace safety, also with reference to the emergency context,” paragraph 5)).

As also recalled by the party during the investigation, Decree Law 44/2021 (converted into Law 76/2021), containing “Urgent provisions regarding the prevention of contagion from SARS-CoV-2 through the imposition of vaccination obligations for healthcare professionals and operators of health interest,” in the wording in force at the time the facts occurred (August 2021), provided for the vaccination obligation as an “essential requirement for the exercise of the profession and for the...”**

****Development of Work Performance****

towards the “healthcare professionals and health operators referred to in Article 1, paragraph 2, of Law No. 43 of February 1, 2006.”

The provision also identified, through a detailed regulation, the timelines and methods by which the Regions and Autonomous Provinces, as well as the competent ASLs, professional orders, and employers, should proceed to identify the individuals subject to the vaccination obligation, to ascertain their vaccination status or, conversely, the non-compliance with the vaccination obligation (Article 4 of Decree-Law 44/2021).

Contrary to what the Company claimed, however, the competent ASL “ascertains the non-compliance with the vaccination obligation and, after acquiring any further information from the competent authorities, immediately communicates this in writing to the interested party, the employer, and the relevant professional Order” (paragraph 6). This regulation, therefore, did not assign any specific competence to the competent physician for the purpose of verifying compliance with the vaccination obligation, let alone the obligation to inform employers regarding subsequent and potential measures to be taken.

In light of the above-mentioned regulatory framework, it is thus established that the communication of information regarding the claimant's vaccination status occurred outside the specific competences and obligations established by the legislation.

****4. Conclusions: Declaration of Illegality of the Processing. Corrective Measures Pursuant to Article**

58, Paragraph 2, of the Regulation.**

For the reasons stated above, the Authority believes that the statements, documentation, and reconstructions provided by the data controller during the investigation do not allow for overcoming the observations notified by the Office with the initiation of the procedure and are therefore unsuitable to allow for the closure of the present procedure, as none of the cases provided for in Article 11 of the Garante Regulation No. 1/2019 apply.

The processing of personal data carried out by the Company, as the competent physician, consisting of the communication of data related to the claimant's vaccination status to the employer is unlawful, as it occurred in the absence of an appropriate legal basis as per Article 9, paragraph 2, of the Regulation.

Regarding the exercise of the corrective powers under Article 58, paragraph 2, of the Regulation, it is noted that the conduct was carried out in a particular context, such as that of the epidemiological emergency, which does not require the prescription of specific measures.

****5. Adoption of the Injunction Order for the Application of the Administrative Monetary Sanction and Accessory Sanctions.****

At the conclusion of the procedure, it has been established that the Company violated Article 9, paragraph 2, of the Regulation.

The violation of the aforementioned provisions entails the application of the administrative sanction provided for in Article 83, paragraph 5, letter a), of the Regulation.

Considering the need to apply paragraph 3 of Article 83 of the Regulation, which states that "If, in relation to the same processing or related processing, a data controller [...] violates, with intent or negligence, various provisions of this Regulation, the total amount of the administrative monetary sanction does not exceed the amount specified for the most serious violation," the total amount of the sanction is calculated so as not to exceed the maximum penalty provided for by the same Article 83, paragraph 5.

With reference to the elements listed in Article 83, paragraph 2, of the Regulation for the purpose of applying the administrative monetary sanction and its quantification, considering that the sanction must "in any case [be] effective, proportionate, and dissuasive" (Article 83, paragraph 1 of the Regulation), it is represented that, in this case, the following circumstances have been considered:

- Regarding the nature, gravity, and duration of the violation, the violation in question is deemed significant as it involved the communication to third parties of data falling within the so-called special categories and the level of harm suffered by the interested party;
- The degree of responsibility of the data controller who, in carrying out their duties, processed the claimant's data in the absence of appropriate safeguards;
- The categories of data affected by the violation, which fall within the so-called special data;
- The absence of previous relevant violations committed by the data controller;
- The complexities associated with the application of the regulation in the emergency context.

It is also considered that the economic conditions of the offender, determined based on the Company's turnover as per the financial statements for the year 2023, are relevant in this case, taking into account the aforementioned principles of effectiveness, proportionality, and dissuasiveness to which the Authority must adhere in determining the amount of the sanction (Article 83, paragraph 1, of the Regulation).

In light of the above-mentioned elements and evaluations, it is deemed appropriate, in this case, to impose on Medoc s.r.l. the administrative sanction of payment of an amount equal to €20,000.00 (twenty thousand).

In this context, it is also deemed necessary, pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Garante Regulation No. 1/2019, to proceed with the publication of this section containing the injunction order on the website.
of the Guarantor.

This in consideration of the type of violations ascertained that concerned the so-called special data, of the circumstance that the conduct was carried out by a subject who, in the performance of their duties, failed to comply with specific sector provisions as well as with personal data protection regulations.

ALL OF THE ABOVE CONSIDERED, THE GUARANTOR

pursuant to art. 57, par. 1, lett. f), and 83 of the Regulation, finds the illegality of the processing carried out by Medoc s.r.l., represented by the pro-tempore legal representative, with registered office in Forlì, viale Vittorio Veneto n. 1/A, C.F. 02633500406, for the violation of art. 9, par. 2, of the Regulation;

ORDERS

pursuant to art. 58, par. 2, lett. i) of the Regulation, the same Company to pay the total amount of euro 20,000.00 (twenty thousand) as an administrative pecuniary sanction for the violations indicated in this provision;

COMMANDS

the same Company to pay the aforementioned sum of euro 20,000.00 (twenty thousand), according to the methods indicated in the annex, within 30 days from the notification of this provision, under penalty of the adoption of subsequent enforcement actions pursuant to art. 27 of law no. 689/1981.

It is noted that, pursuant to art. 166, paragraph 8, of the Code, the possibility remains for the offender to settle the dispute by paying - always according to the methods indicated in the annex - an amount equal to half of the imposed sanction, within the term provided for the submission of the appeal as indicated below (art. 166, paragraph 8, of the Code).

PROVIDES

pursuant to art. 166, paragraph 7, of the Code and art. 16 of the Guarantor's regulation no. 1/2019,

the publication of the injunction order on the Guarantor's website;

pursuant to art. 154-bis, paragraph 3, of the Code and

art. 37 of the Guarantor's Regulation no. 1/2019, the

publication of this provision on the Guarantor's website;

pursuant to art. 17 of the Guarantor's Regulation no.

1/2019, if the conditions are met, the annotation in the internal register of the Authority provided for by art. 57,

par. 1, lett. u), of the Regulation of the violations and

the measures adopted pursuant to art. 58, par. 2,

of the same Regulation.

Pursuant to art. 78 of the Regulation, as well as articles 152 of the Code and 10 of legislative decree no. 150/2011,

an appeal against this provision may be submitted to the ordinary judicial authority, with a petition filed with the ordinary court of the place identified in the same art. 10, within thirty days from the date of communication of the provision itself, or sixty days if the appellant resides abroad.

Rome, November 14, 2024

THE PRESIDENT

Stanzione

THE REPORTER

Scorza

THE SECRETARY GENERAL

Mattei